

2017 SCC OnLine All 3976 : (2017) 124 ALR 350

In the High Court of Allahabad
(BEFORE ARUN TANDON AND REKHA DIKSHIT, JJ.)

Vandana Srivastava

Versus

Purvanchal Vidyut Vitran Nigam Ltd.

C.M.W.P. No. 13816 of 2017

Decided on May 9, 2017

The Judgment of the Court was delivered by

ARUN TANDON, J. and REKHA DIKSHIT, J.:— Heard learned Counsel for the parties. This writ petition has been filed with the prayer to quash the order of the Consumer Grievances Redressal Forum dated 9.12.2016 and for a direction upon the respondents No. 1 and 2 namely Purvanchal Vidyut Vitran Nigam Ltd and the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd to provide electricity connection with the load of 6 KW under rate Schedule LMV-6 for running the footwear shop in question.

2. From paragraph two of the writ petition, it is apparent that the petitioner claimed himself to be the tenant of the shops in respect whereof electrical energy was prayed for. Reference was made to the order passed by the Civil Judge (Junior Division) dated 11.2.2014, wherein the petitioner was permitted to deposit the rent of the shop and that such rent was deposited by the



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petitioner in the Court of Civil Judge (J. D) Gorakhpur. In paragraph 19 of the writ petition reference has been made to Civil Misc. Case No. 188 of 2015, filed under section 30(2) of U.P. Act No. 13 of 1972 for permission to deposit the rent in the Court of Civil Judge (J. R) and the order passed thereon dated 29.7.2015.

3. It has been then stated that the respondent No. 5 namely Bhishma Kumar son of Manda Lal in collusion with respondent No. 6 on the basis of an application dated 23.11.2015 got the supply of electrical energy to the shop permanently disconnected.

4. The petitioner in that circumstances made a requisition on 14.12.2015 seeking new connection. He complied with all formalities

including indemnity bond as required under Supply Code 2005. The petitioner has, however, not been provided electricity connection for his shop by the department. He filed a complaint before the Consumer Forum which was registered as Misc. Case No. 1 of 2016. The Forum in its order dated 9.12.2016 observed that the dispute with regard to tenancy is pending before the competent Court and therefore, no order is required to be passed by the Forum.

5. In para 44 of the writ petition, a reference has been made in the Civil Suit No. 1454 of 2015 with the statement that the relief as has been prayed for in the writ petition is out side the scope of the said proceeding. The distribution Licensee is neither a party nor any relief has been claimed with regard to new power connection in the suit. The petitioner referred to the obligation of the licensee to provide the electricity facility to the petitioner under the Electricity Code.

6. On behalf of the respondent No. 6 an affidavit has been filed indicating therein that there has been material concealment of facts by the writ petitioner. In original suit No. 1454 of 2015, an application was filed by the writ petitioner/plaintiff for a direction to the licencing authority to provide electrical energy to the shop of the petitioner which application was got dismissed as withdrawn.

7. In the said suit a temporary injunction application was also filed for re-' straining the respondent No. 6 from interfering in the running of the shop by the petitioner/plaintiff in question. The temporary injunction application came to be rejected by the Trial Court *vide* order dated 6.3.2017. Copy of the order passed by the Trial Court in suit No. 1454 of 2015 disposing of the temporary injunction has been enclosed at page 51 of the affidavit filed on behalf of the respondent No. 6. The Trial Court has recorded a categorical finding that the plaintiff has failed to establish on *prima facie* basis that he was the tenant of the premises in question.

8. The petitioner/plaintiff has filed the present petition before the Court on 31.3.2017 supported by an affidavit dated 26.3.2017 i.e. 20 days subsequent to the order of the learned Trial Court rejecting the temporary injunction application.

9. The factum of filing of the temporary injunction application and the order passed there on dated 6.3.2017 is admitted to the petitioner/plaintiff. There is no mention of the aforesaid facts in the present writ petition.

10. In our opinion the order passed by the Trial Court disposing of the temporary injunction application after recording a finding that the petitioner has failed to establish herself as tenant of the premises in question, are materia) facts which should have been disclosed in the present writ petition.



11. Finding recorded by the learned Trial Court *qua* the petitioner being unable to establish herself as a tenant although at the interim stage only is material fact for consideration of the grievance as has been raised in the present writ petition, at least in the matter of grant of it 'term order.

12. May be that the distribution licensee is not a party in the suit and no relief in the matter of supply of electrical energy to the shop of the petitioner has been prayed therein, yet the findings of the Trial Court on the status of the petitioner is relevant for considering this writ petition, which should have been disclosed all the fact to this Court at the very outset. It is settled law that the Writ Court shall not interfere in writ jurisdiction for a petitioner who has not approached this Court with clean hands. This writ petition is dismissed.

13. *Petition Dismissed.*

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